

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 719

Introduced by Jacobson, 42.

Read first time January 07, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Nebraska Rural Projects Act; to amend
- 2 section 81-12,203, Reissue Revised Statutes of Nebraska; to redefine
- 3 a term; to repeal the original section; and to declare an emergency.
- 4 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 81-12,203, Reissue Revised Statutes of Nebraska,
2 is amended to read:

3 81-12,203 Project means expenses incurred or to be incurred at one
4 qualified location for:

5 (1) Site acquisition and preparation, transportation infrastructure,
6 utility extensions, and rail spur construction for the development of a
7 new industrial rail access business park, including:

8 (a) Any ~~any~~ such expenses incurred to assist an initial tenant at
9 such business park that conducts business in the manufacturing,
10 processing, distribution, or transloading trades; and ~~or~~

11 (b) Infrastructure development costs involving property not owned by
12 the applicant that directly benefit the business park and are critical to
13 the business park's development, including, but not limited to,
14 acquisition of rights-of-way, easements, and adjacent properties allowing
15 for street access or improvements; construction of turning lanes from
16 adjacent major highways; construction of rail spurs and drop and pull
17 rail yards connected to a main railroad line; and necessary utility
18 improvements critical to serve the business park, including water,
19 electric, wastewater, and storm water infrastructure; or

20 (2) Site acquisition and preparation, transportation infrastructure,
21 or rail spur construction within thirty miles of the largest artificial
22 reservoir constructed in this state for the storage of water.

23 **Sec. 2.** Original section 81-12,203, Reissue Revised Statutes of
24 Nebraska, is repealed.

25 **Sec. 3.** Since an emergency exists, this act takes effect when
26 passed and approved according to law.